



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT 7963
(FIFTH REVISION)

1. Zeneca, Incorporated, Wilmington, Delaware, (Formerly ICI Americas, Inc.), is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer packages prescribed herein of a certain Division 6.1 material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of perchloromethyl mercaptan, in monel tanks constructed in accordance with DOT Specification 51, and provides no relief from any regulation other than as specifically stated. **NOTE:** Reference to 49 CFR sections in this exemption are to regulations in effect on September 30, 1991.

2. BASIS. This exemption is based on Zeneca, Incorporated's application dated September 14, 1993 and supplemental letter of October 6, 1993 submitted in accordance with 49 CFR 107.105.

3. HAZARDOUS MATERIALS (Descriptor and class). Perchloromethyl mercaptan, and thiophosgene, classed as a Division 6.1 material.

4. PROPER SHIPPING NAME (49 CFR 172.101). Perchloromethylmercaptan.

5. REGULATION AFFECTED. 49 CFR 173.360(a)(5).

6. MODE OF TRANSPORTATION AUTHORIZED. Motor vehicle, rail freight and cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is monel portable tank built in accordance with Mitternacht Boiler and Machine Works Drawing No. S9170011 dated March 2, 1973 and in compliance with DOT Specification 51 except as follows:

a. Tank must be constructed of monel.

b. Omit DOT Specification number on the nameplate (see 49 CFR 178.245-6(a)).

c. Registration of tank with the Bureau of Explosives not required; the shipper is required to have on file a copy of the manufacturers data report required by the ASME Code.

OCT 26 1993

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reoffer them for transportation provided no modifications or changes are made to the packages, all terms of this exemption are complied with and a current copy of this exemption is maintained at each facility from which such reoffering occurs.

b. Safety relief valve on the tank must be set to start-to-discharge at 100 psi.

c. Volumetric capacity of tank is limited to 1690 gallons.

d. Sufficient outage must be allowed in the tank so that it does not become liquid-full at 130°F.

e. Tank must not be equipped with bottom discharge outlets.

f. Each tank must be reinspected and retested in accordance with 49 CFR 173.32 for DOT-51 portable tanks.

g. Each portable tank must be plainly marked on both sides near the middle, in letters at least two inches high on a contrasting background, "DOT-E 7963."

h. Shipments by rail must be in ISO containers in accordance with Stauffer Chemical Company's packaging specification H-2-0005, dated June 6, 1980, on file with the Office of Hazardous Materials Exemptions and Approvals.

i. A copy of this exemption must be carried aboard each vessel used to transport packages covered by this exemption.

j. This exemption does not apply to operations beyond the jurisdiction of the United States of America.

k. The portable tanks authorized under this exemption may be used until construction of new portable tanks which meet the improved integrity requirements contained in 49 CFR 172.102(c)(3) Special Provisions B9, B14, and B32 are completed and placed in service, but no later than the expiration date of this exemption.

1. New portable tanks must replace existing portable tanks on a one-for-one basis.

9. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

10. EXPIRATION DATE. March 1, 1994.

Issued at Washington, D.C.:



Alan I. Roberts
Associate Administrator for
Hazardous Materials Safety

OCT 26 1993

(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.
Attention: Exemptions Program.

The original of this exemption is on file at the above office. Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

Dist: FHWA, FRA, USCG